

Section 6.

SCHEDULE.**Provisions continued in
Force.****Modifications.**

S. 1 (Obligation to pay prescribed rates of wages).

As from the commencement of this Act the power to substitute any enforceable rate for the prescribed rate shall cease, without prejudice, however, to the enforceability of any rate substituted for the prescribed rate before the commencement of this Act, whether the substituted rate has or has not come into operation before that date, and without prejudice to the enforceability of any rate substituted for the prescribed rate by an award of the Industrial Court under Part III. of this Act.

Subs. (2) of s. 2 (Settlement of differences).

As from the commencement of this Act matters instead of being referred for settlement as provided in subs. (2) shall be referred to the Industrial Court.

The words "or as to whether any rate should be substituted for the prescribed rate" shall cease to have effect, and the proviso to subs. (2) shall not apply.

S. 3 (Powers of inquiry).

S. 4 (Definition of prescribed rates of wages).

As from the commencement of this Act a reference to the Industrial Court shall be substituted for any reference to the Interim Court of Arbitration.

S. 5 (Legal proceedings).

CHAPTER 70.

An Act to make further provision with respect to the Retirement and Pensions of County Court Judges and the employment of deputy judges, and for purposes in connection therewith. [23rd December 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The office of county court judge shall be vacated at the end of the completed year of service in the course of which the holder of the office attains the age of seventy-two :

Provided that the Lord Chancellor may extend that age from time to time up to such later age (not exceeding seventy-

Compulsory
retirement of
judges.

five) as he thinks fit in the case of any county court judge who has attained the age of seventy-two, if he considers that the retention of his services would be desirable in the public interest.

2.—(1) It shall be lawful for the Lord Chancellor from time to time to recommend to the Treasury that there shall be paid to any county court judge—

Pensions of
county court
judges.

- (a) if his office is vacated in pursuance of this Act ; or
- (b) if the Lord Chancellor is satisfied by means of a medical certificate that he is incapable, from infirmity of mind or body, to discharge the duties of his office, and that such incapacity is likely to be permanent ; or
- (c) if he retires after fifteen years' service, and at the time of retirement had attained the age of sixty-five years,

an annual sum by way of pension calculated in accordance with the scale contained in the Schedule to this Act, and such sum shall be charged on and paid out of the Consolidated Fund of the United Kingdom, or the growing produce thereof, and shall be paid quarterly or otherwise in every year as the Treasury may direct.

(2) A person to whom a pension has been granted under this Act before he has attained the age of seventy-two years, in consequence of the incapacity in this section mentioned, shall, until he has attained that age, be liable to be called upon by the Lord Chancellor to resume the duties of a county court judge with the salary attached thereto, and, if (being in a competent state of health) he declines when so called upon to resume such duties or declines or neglects to execute such duties satisfactorily, he shall forfeit his right to the pension which has been granted to him.

(3) Whenever a person has resumed his duties as aforesaid, the payment of the pension which has been granted to him shall be suspended during his period of resumed service, but at the end of that period his pension shall again be payable and be recalculated in accordance with the said scale, and for that purpose the period of his resumed service shall be added to his former period of service.

(4) In the exercise of his powers under section eight of the County Courts Act, 1888, the Lord Chancellor shall, before appointing a person to be a county court judge, take steps to satisfy himself that that person's state of health is satisfactory.

51 & 52 Vict.
c. 43.

(5) The decision of the Treasury on any question which arises as to the application of any provision of this Act to any person, or as to the amount of any pension under this Act, or as to the reckoning of any service for such a pension, shall be final.

Application to
existing judges.

3. The foregoing provisions of this Act relating to retirement and pensions of county court judges shall not apply to any county court judge appointed before the first day of June nineteen hundred and nineteen unless he shall give written notice, in such form and within such period as may be prescribed by the Lord Chancellor, of his desire to accept those provisions in lieu of the provisions repealed by this Act.

Remuneration
and qualifica-
tion of deputy
judges.

4.—(1) Where a deputy has been appointed in the case of the illness of any judge, the Treasury may, on the recommendation of the Lord Chancellor, allow the deputy such remuneration as they think fit, and the remuneration so allowed shall be paid out of money provided by Parliament.

(2) It is hereby declared that amongst the persons qualified to be appointed as deputy judge under section eighteen of the principal Act there is included a former judge of county courts.

Repeal, con-
struction, and
citation.

5.—(1) Section twenty-four of the County Courts Act, 1888, is hereby repealed, except as respects judges to whom the provisions of this Act relating to retirement and pensions of county court judges do not apply.

3 Edw. 7. c. 42.

(2) This Act shall be construed as one with the County Courts Act, 1888, and the Acts amending the same, and the County Courts Act, 1888, the County Courts Act, 1903, and this Act may be cited together as the County Courts Acts, 1888 to 1919; and this Act may be cited separately as the County Court Judges (Retirement Pensions and Deputies) Act, 1919.

SCHEDULE.

Section 2.

SCALE OF PENSIONS.

When the number of completed years of service in the office of county court judge is :—

Less than 5, the annual pension { shall not exceed }			six-thirtieths of the last annual salary.		
5.	"	"	ten-thirtieths	"	"
6.	"	"	eleven-thirtieths	"	"
7.	"	"	twelve-thirtieths	"	"
8.	"	"	thirteen-thirtieths	"	"
9.	"	"	fourteen-thirtieths	"	"
10.	"	"	fifteen-thirtieths	"	"
11.	"	"	sixteen-thirtieths	"	"
12.	"	"	seventeen-thirtieths	"	"
13.	"	"	eighteen-thirtieths	"	"
14.	"	"	nineteen-thirtieths	"	"
15 or more	"	"	twenty-thirtieths	"	"